

## General Conditions (GC)

These General Conditions apply to this Authority.

### Definitions and interpretation:

1. In this Authority unless otherwise required by the context or subject matter:

**1.1** "Act" means the Estate Agents Act 1980.

**1.2** "Agent" means the Agent named in the Particulars of Appointment.

**1.3** "binding offer" means:

**1.3.1** an offer at the Vendor's price and on the terms set out in the Particulars of Appointment which would result in an enforceable contract of sale, if signed by the Vendor and exchanged with the purchaser; or

**1.3.2** an enforceable contract of sale signed by the Vendor and the purchaser.

For the purposes of **GC 1.3.1** the offer must be in a contract of sale signed by the purchaser and "Vendor's price" has the meaning in **GC 1.14**. For the purposes of **GC 1.3.1** and **GC 1.3.2** "enforceable contract of sale" means a contract which may be enforced by an order for specific performance and/or upon the breach of which either the Vendor or the purchaser would be entitled to an award of damages.

**1.4** "deposit moneys" has the same meaning as defined in the Sale of Land Act 1962.

**1.5** "Exclusive Authority Period" means the period commencing on the date of this Authority and continuing until the expiry of the number of days specified in the Particulars of Appointment.

**1.6** "GST" means the goods and services tax payable in accordance with the A New Tax System (Goods and Services Tax) Act 1999.

**1.7** "introduced to the Property" means the person was made aware the Property was available to purchase irrespective of the source. Without limiting the generality of the foregoing, a person will be deemed to have been introduced to the Property by the Agent if the person became aware the Property was available for purchase as a result of viewing, hearing, or reading an advertisement of whatever nature or medium or any boards, placards, or other literature referring to the availability of the Property that were connected to the Agent in any way.

**1.8** "Marketing Expenses" means the advertising and other expenses of the Agent specified in the Particulars of Appointment.

**1.9** "person" includes a natural person, a corporation and an incorporated association.

**1.10** "professional fees" means the total of the commission and Marketing Expenses as duly authorised and expended.

**1.11** "purchaser" means the person to whom the Property is sold.

**1.12** "REIV" means The Real Estate Institute of Victoria Ltd [ACN 004 210 897].

**1.13** "sold" is the result of obtaining a binding offer and "sale" and "sell" have corresponding meanings.

**1.14** "Vendor's price" means a price equal to or greater than the Vendor's price stated in the Particulars of Appointment.

**1.15** A reference to an act of Parliament includes an act amending or superseding the act referred to.

**1.16** If the Agent or the Vendor comprises more than one person, their respective obligations are joint and individual.

**2.** If the purchaser does not complete the purchase and forfeits the deposit, the Vendor will take all reasonable steps to recover any unpaid deposit from the purchaser and/or any other person who may be liable for payment of the deposit and to pay the professional fees from the sum of the deposit paid or recovered.

**3.** If the Vendor fails to pay the Agent any moneys due under this Authority within 30 days of receipt of the Agent's invoice ("the due date for payment"), then interest at the rate fixed from time to time under section 2 of the Penalty Interest Rates Act 1983 will be charged on the unpaid money (or the balance owing from time to time) calculated from the due date for payment to and including the day on which the unpaid money is paid in full. The interest will be paid, if demanded.

**4.** A person signing this Authority for or on behalf of the Vendor is personally responsible for the due performance of the Vendor's obligations as if the signatory was the Vendor. If required by the Agent, the signatory will procure the execution of a guarantee and indemnity in favour of the Agent by the directors of a Vendor that is a corporation or the committee members of a Vendor that is an incorporated association, in a form acceptable to the Agent's legal practitioner.

**5.** If while a stakeholder the Agent is requested to transfer the deposit moneys to the Vendor's legal practitioner or conveyancer or to another estate agent acting on behalf of the Vendor, the Vendor agrees the Agent may retain out of the deposit moneys an amount equal to the Agent's commission and/or Marketing Expenses that the Agent is then or will become entitled to and any other moneys that Agent is or will become entitled to by law in relation to the sale of the Property.

**6.** The Vendor irrevocably authorises the Agent to deduct the professional fees properly incurred and state and federal taxes required to be deducted by law, including GST, from the deposit moneys held by the Agent.

**7.** If the Property is sold and no deposit moneys are held by the Agent, the Vendor will pay the professional fees properly incurred and state and federal taxes required to be deducted by law, including GST, on demand.

**8.** If deposit moneys are held in whole or part by the Vendor's conveyancer or legal practitioner, the Vendor appoints the Agent as the Vendor's attorney under power to direct and authorise the conveyancer or legal practitioner to pay the professional fees properly incurred and state and federal taxes required to be deducted by law, including GST, to the Agent. The Vendor agrees to promptly ratify and confirm the power of attorney, if requested.